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26-CIV-03505 SHANNON PEKARY VS. PALO ALTO PARK MUTUAL WATER COMPANY, ET AL.

LINE 5

SHANNON PEKARY
PALO ALTO PARK MUTUAL WATER COMPANY

PRO PER
BRIAN A. BARNHORST

DEFENDANTS NIAMBI LINCOLN AND FIDEL ALAS'S MOTION TO QUASH SERVICE OF SUMMONS AND COMPLAINT

TENTATIVE RULING:

Nominal Defendant Niambi Lincoln's motion for an order quashing service of the summons and complaint by Plaintiff Shannon Pekary is DENIED.

This case concerns the validity of Defendant Palo Alto Park Mutual Water Company's December 2025 election. Plaintiff brought the underlying action pursuant to Corporations Code section 7616 requesting the Court confirm the validity of the Palo Alto Park Mutual Water Company's December 20, 2025, election of directors. The complaint names Palo Alto Park Mutual Water Company as the corporate defendant and names movant of the instant motion, Niambi Lincoln, as a nominal defendant.

In the instant motion, Ms. Lincoln specially appears to challenge service of the summons and complaint as legally defective because service was via substituted service upon an unidentified Jane Doe and there is not completed statutory mailing because the date and place are blank on the form. Plaintiff, appearing pro se, opposes and contends that the service record indicates several attempts at personal service before posting the documents to Lincoln's front door and mailing them to her work and home addresses. Service was proper under the service provision in Corporations Code section 7616, subdivision (c).

A court gains jurisdiction over a defendant from the time the defendant is served with a copy of the summons and the complaint on which it is based as required under the Code of Civil Procedure. (Code Civ. Proc. §§ 410.50, 412.20.) A motion to quash is utilized by a defendant who makes a special appearance for the narrow purpose of contesting personal jurisdiction. (2 Witkin, Cal. Procedure (6th ed. 2026 March Update) Jurisdiction, § 231.) As argued by movant, the service of a substantially defective summons does not confer jurisdiction over a party. (*Greene v. Municipal Court* (1975) 51 Cal. App. 3d 446, 451.) The questions presented to the Court in this motion is whether the summons and its service are defective such that the summons did not confer this Court's jurisdiction over Ms. Lincoln.

As was said in *Donel, Inc. v. Badalian* (1978) 87 Cal.App.3d 327, 333, a case centering upon service by publication, "[n]o single formula nor mode of search can be said to constitute due diligence in every case." (Id. at 333.) After having read and considered both parties' positions and the proofs of service from appended to the declarations of Ms. Lincoln and plaintiff, the Court finds that plaintiff substantially complied with this Court's May 11, 2026 order which ordered plaintiff to "make best efforts" to personally serve [Ms. Lincoln]. (Declaration of Shannon Pekary iso Opposition to Motion to Quash, filed June 5, 2026, Ex. A.) Here, plaintiff hired registered process servers and the declarations of due diligence from them both, Donald Kaul and Scott Feely, demonstrate that a total of four attempts at personal service were made before posting and mailing to Ms. Lincoln, see *infra*:

- May 12, 2026, 3:25 p.m. Ms. Lincoln's Dumbarton home address (Feely)
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- May 12, 2026, 8:05 p.m. Ms. Lincoln's Dumbarton home address (Kaul)
- May 13, 2025, 11:15 a.m. Ms. Lincoln's Dumbarton home address (Feely)
- May 13, 2026, 7:50 p.m. Ms. Lincoln's Dumbarton home address (Kaul)
- May 15, 2026, 9:35 a.m. POSTED at Ms. Lincoln's Dumbarton home address (Kaul)

(Lincoln Decl., Ex. 2- Declaration of Service by Posting by Donald Kaul, photos of posting & Kaul Declaration of Reasonable Diligence; Pekary Decl. Ex. B- Feely Declaration of Reasonable Diligence, Ex. C- registered mail receipts.)

Thus, the Court finds Plaintiff complied with the Court's order that "In the event that a registered process server is unable to effectuate persona service after three attempts, Plaintiff is permitted to effectuate service by having a registered process server leave a copy of the complaint, summons and a copy of this Order at the front door of defendant Corporation headquarters and the home of each defendant Director ... and send copies by registered mail." (Pekary Decl. Ex. A.) Accordingly, Ms. Lincoln's motion to quash is DENIED.

Ms. Lincoln shall file an answer within ten (10) days of entry of this order.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

UD LAW AND MOTION CALENDAR
MONDAY, AUGUST 03, 2026

02:00 PM

26-UDL-00636 ZIJING LIU VS. STEPHEN F. POWELL

LINE 6

ZIJING LIU
STEPHEN F. POWELL

PRO PER
PRO PER

DEFENDANT: STEPHEN POWELL'S MOTION TO SUSPEND SHERIFF'S JULY 7, 2026 NOTICE TO VACATE

TENTATIVE RULING:

The Motion to Suspend Sheriff's July 7, 2026 Notice to Vacate by Defendant Stephen F. Powell is DENIED as moot. The sheriff returned possession of the property to Plaintiff on July 7, 2026. (See Return on Writ of Possession filed July 22, 2026.)

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.



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